

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nina Mickens	Team: Team # 2	CCRB Case #: 200800389	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 12/31/2007 10:18 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/30/2009	Precinct: 71		
Date/Time CV Reported Tue, 01/01/2008 6:45 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/08/2008 3:26 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Mccloud	28878	938979	070 PCT
2. POM William Diab	22800	940125	070 PCT
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Gabriell Walls	04574	927655	071 PCT
2. POF Julie Casale	13369	943058	071 PCT
3. POM John Pietanza	17158	943682	071 PCT
4. POF Veronica Chaparro	28664	938214	071 PCT
5. POF Melissa Lopez	12159	938878	071 PCT
6. POF Alisha Noel	09463	943613	71 PCT
7. INS Frank Vega	00000	899946	71 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Mccloud	Abuse of Authority: PO Anthony Mccloud forcibly stopped § 87(2)(b)	A . Substantiated
B . POM Anthony Mccloud	Abuse of Authority: PO Anthony Mccloud searched § 87(2)(b)	B . Substantiated
C . Officers	Force: Officers struck § 87(2)(b) with an asp.	C . Officer(s) Unidentified
D . POM Anthony Mccloud	Abuse of Authority: PO Anthony Mccloud threatened § 87(2)(b) with the use of force.	D . Substantiated
E . POM William Diab	Force: PO William Diab used physical force against § 87(2)(b)	E . Substantiated
F . POM William Diab	Discourtesy: PO William Diab acted rudely toward § 87(2)(b)	F . Substantiated
G . POM Anthony Mccloud	Other: PO Anthony Mccloud intentionally made a false official statement when he said that he did not use physical force, place in handcuffs or detain § 87(2)(b) at § 87(2)(b) in Brooklyn.	G . Other Misconduct

Officer(s)	Allegation	Investigator Recommendation
H . POM William Diab	Other: PO William Diab intentionally made a false official statement when he said that he did not use physical force, place in handcuffs or detain § 87(2)(b) at § 87(2)(b) in Brooklyn.	H . Other Misconduct

Synopsis

On January 1, 2008, § 87(2)(b) called 911 to file a complaint and he was transferred to the Internal Affairs Bureau (IAB log # 08-00193) (Encl.7a-b). The case was received at the CCRB on January 8, 2008. § 87(2)(b) was interviewed at the CCRB on February 5, 2008. § 87(2)(b) stated that on December 31, 2008, sometime after 9:00 PM, he was approached by two officers in a marked patrol car near his home at § 87(2)(b) in Brooklyn. The driver of the patrol car was identified as PO Anthony McCloud by the summons he later issued to § 87(2)(b). The passenger of the car was identified through the investigation as PO William Diab. PO McCloud told § 87(2)(b) to stop so that he could speak with him. (Allegation A) § 87(2)(b) continued to walk to his home because he had a curfew. § 87(2)(b) alleged that PO McCloud had his gun drawn and pointed towards him. PO McCloud then allegedly searched inside of § 87(2)(b)'s pants and jacket pockets (Allegation B). § 87(2)(b) stated that the officers told him that he was identified in a robbery. § 87(2)(b) thought the search of his person was over and he began to put his hands down. PO McCloud then allegedly pushed § 87(2)(b) into the window on his porch, grabbed § 87(2)(b)'s legs and pulled him onto the floor. At this point, additional officers arrived at the scene. § 87(2)(b) alleged that officers hit him on both of his legs with an asp (Allegation C). § 87(2)(b) was placed in handcuffs and lifted up off of the ground. § 87(2)(b) alleged that PO Diab searched his pants and jacket pockets and removed the contents. § 87(2)(b) was placed into the back of PO McCloud and PO Diab's patrol car. While inside, § 87(2)(b) alleged that PO McCloud said, "Shut the fuck up before I beat you up (Allegation D)." The officers allegedly drove § 87(2)(b) down several blocks before releasing him. PO McCloud wrote and issued § 87(2)(b) a summons § 87(2)(b). PO Diab then allegedly pulled § 87(2)(b) out of the patrol car and threw the items he had removed from § 87(2)(b)'s pockets onto the ground (Allegation E and F).

§ 87(2)(g) It is therefore recommended that allegation A be closed as "*Substantiated*." § 87(2)(g) It is therefore recommended that allegations B and E be closed as "*Substantiated*." § 87(2)(g) It is therefore recommended that allegation C be closed as "*Officers Unidentified*." § 87(2)(e), § 87(2)(f) § 87(2)(g) therefore recommend that allegation E be closed as "*Substantiated*." § 87(2)(g) Therefore it is recommended that allegation F be closed as "*Substantiated*."

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black male, was interviewed at the CCRB on February 5, 2008 (Encl. 11a-t). § 87(2)(b) is § 87(2)(b) with brown eyes and brown hair which he wore in braids. § 87(2)(b) contacted the Internal Affairs Bureau on January 1, 2008, he provided a hand-written statement authored on January 21, 2008 and he provided a telephone statement on January 25, 2008. § 87(2)(g)

On December 31, 2007, several minutes before 9:00PM, § 87(2)(b) was dropped off on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, by a friend of his mother. § 87(2)(b) was coming from his mother's house in East New York and did not know the name of the woman who drove him home. While walking the two blocks towards his home, § 87(2)(b) noticed a patrol car passing by. § 87(2)(b)

§ 87(2)(b) arrived at the gate of his residence at § 87(2)(b). He was stopped by two officers in a marked patrol car. PO1 (black male, stocky build, 180-190 lbs, short haircut, 5'8"-5'9" tall) and PO2 (white male, 160-165 lbs, 5'7"-5'8" tall, clean shaven) asked § 87(2)(b) to stop so that they could talk to him. PO1 has been identified as PO Anthony McCloud by the summons he later issued § 87(2)(b). PO McCloud was the driver of the vehicle and PO2, identified through the investigation as PO William Diab, was the passenger. § 87(2)(b) did not recognize the officers from any prior interactions. § 87(2)(b) explained that he had to get in the house before his 9:00PM curfew. § 87(2)(b) is on parole after being incarcerated § 87(2)(b). He thought the officers were going to let him go so he started to walk up the stairs of his house to ring the doorbell.

PO McCloud and PO Diab came into § 87(2)(b)'s front yard. § 87(2)(b) saw the officers approaching, so he banged on his house door. He wanted his family to know that he was outside just in case anything happened to him. § 87(2)(b) put his hands up in the air and turned around to face the officers. PO McCloud had his gun drawn and was holding it a chest level with both hands, pointed at § 87(2)(b). PO McCloud turned § 87(2)(b) so that he was no longer facing the officers. PO McCloud searched § 87(2)(b)'s pants and jacket pockets. § 87(2)(b) was wearing a blue hooded shirt, a brown leather jacket, blue pants and an army fatigue vest. PO McCloud did not find anything in § 87(2)(b)'s pockets. The officers told § 87(2)(b) that he was identified in a robbery. § 87(2)(b) thought the search was over, so he attempted to put his hands down and turn around to face the officers. As a result, PO McCloud pushed § 87(2)(b)'s body into the window on his house, which caused the window to crack. PO McCloud grabbed § 87(2)(b)'s legs and pulled him onto the floor. The officers said that they saw § 87(2)(b) reaching for something. § 87(2)(b)'s chest hit the floor and his arms were folded underneath his chest. One of the officers placed his knee in § 87(2)(b)'s back and the other officer was pulling § 87(2)(b)'s leg. § 87(2)(b) was not sure which officer did each thing because he could not see them. Both officers told § 87(2)(b) to put his hands behind his back. § 87(2)(b) told them that he could not do this because he was lying on his arms and the officers were on his back.

Approximately six more officers and a sergeant arrived in 3 or 4 police cars. These officers have been identified through the investigation as Sgt. Gabrielle Walls, PO John Pietanza, PO Veronica Chaparro, PO Melissa Lopez, PO Alisha Noel, PO Julie Casale and Inspector Frank Vega. The officers began to hit § 87(2)(b) in his legs with an asp. § 87(2)(b) knew that he was being hit with an extended stick because he heard a snap sound when it was opened. § 87(2)(b) was struck 10- 20 times but was not sure who was hitting him. In his statement to IAB, § 87(2)(b) stated he was hit in his right ankle with a night stick and not on both of his legs.

Three of § 87(2)(b)'s neighbors witnessed the incident and yelled at the officers, telling them to stop. § 87(2)(b) did not know the neighbors' names. In the hand-written statement provided by § 87(2)(b) he alleged that an officer spat at one of his neighbors (Encl. 9a-b). § 87(2)(b) did not make this statement again during the investigation. After § 87(2)(b) was placed in handcuffs, PO McCloud and PO Diab picked him up from the ground. PO Diab searched § 87(2)(b)'s pants and jacket pockets. He removed § 87(2)(b)'s identification, MetroCard, and social security card. § 87(2)(b) was placed in the back of PO Diab and PO McCloud's patrol car. He asked PO McCloud to loosen his handcuffs. PO McCloud said, "Shut the fuck up before I beat you up," and did not loosen the handcuffs.

PO McCloud and PO Diab drove § 87(2)(b) towards § 87(2)(b), one block from § 87(2)(b)'s house. They looked inside of several garbage cans on the street and did not find anything. § 87(2)(b) heard a radio transmission stating that the robbery suspect was apprehended on Newkirk Avenue in Brooklyn. PO McCloud and PO Diab told § 87(2)(b) that they were going to run his name for warrants and if the search was negative then they would let him go. The warrant check was negative. § 87(2)(b) saw PO McCloud writing a summons in the front seat. PO Diab got out of the car and took the handcuffs off of § 87(2)(b). PO Diab grabbed § 87(2)(b) by his jacket and pulled him out of the back seat. PO Diab placed the summons in § 87(2)(b)'s pant pocket and threw the items he retrieved from § 87(2)(b)'s pockets during the search onto the floor. Then the officers drove off. The entire interaction with the officers lasted 45 minutes. § 87(2)(b) went to § 87(2)(b) the following day (Encl. 32a-nn). He sustained swelling on his right ankle and shin as a result of being struck with an asp. Photographs of § 87(2)(b)'s bruises were taken one week after the incident (Encl. 11g-o).

Results of Investigation

Civilian Witness Statements

§ 87(2)(b)

§ 87(2)(b) provided a written statement to § 87(2)(b)'s attorney, § 87(2)(b), and had it notarized on January 21, 2008 (Encl. 12a-d). § 87(2)(b) mailed § 87(2)(b) statement to the CCRB, received on March 17, 2008. § 87(2)(b) stated that on December 31, 2007, sometime between 8:00PM and 9:00PM, she was inside her home at § 87(2)(b) in Brooklyn, watching television. § 87(2)(b) heard what sounded like screaming coming from outside of her home. Her windows were closed but she could still hear the noise. § 87(2)(b) looked outside the window but she did not see anything. She opened her front door and saw one marked police car in the street. § 87(2)(b) looked over to § 87(2)(b)'s home at § 87(2)(b) because this is where she heard the screaming. § 87(2)(b) has known § 87(2)(b) to be her neighbor for approximately one year. She walked over to § 87(2)(b)'s house and saw six police officers on the porch holding § 87(2)(b) on the ground. § 87(2)(b) stood at the front gate of § 87(2)(b)'s house. All of the officers were on § 87(2)(b) and were using their hands to pin him down. Two of the officers looked like they were holding § 87(2)(b)'s head. Two officers looked like they were holding his rib cage and two officers were holding his legs. Two additional officers arrived along with two additional police cars.

§ 87(2)(b) observed a male officer take out what looked like a silver baton. This officer pulled § 87(2)(b)'s legs and struck him with the baton. The other officers continued to hold § 87(2)(b) down. Two of the officers were big men. The officers were saying, "Get his hands." The officer with the baton hit § 87(2)(b) several times. § 87(2)(b) yelled to the officers, "Stop hitting him. You don't have to hit him. You are going to break his leg." There was no response directly to § 87(2)(b) comment. The officer with the baton said to § 87(2)(b) "Stop resisting arrest," and continued to hit § 87(2)(b). The jostling and fighting continued. § 87(2)(b) did not appear to be disobeying the officers' orders and did not provoke the officers in anyway.

After a few moments, a police 'captain', identified through the investigation as Inspector Frank Vega, arrived at the scene. He went onto § 87(2)(b)'s porch. § 87(2)(b) did not hear any conversation that may have transpired between Ins. Vega, the officers and § 87(2)(b). Suddenly, the officers got off of § 87(2)(b) and stood him up. § 87(2)(b) noticed that § 87(2)(b) was in handcuffs. § 87(2)(b) appeared as though he could not walk on his own without the officers' assistance. § 87(2)(b) did not see what the officers did with § 87(2)(b) once he was up because she began to speak to Ins Vega. She explained that she thought the officers had used excessive force. Ins. Vega said, "That is what they are taught at the academy." When § 87(2)(b) mentioned that eight officers seemed to be a lot for one person, Ins. Vega responded, "Safety first." § 87(2)(b) went back to her house and did not see anything else. During the incident, § 87(2)(b) observed six other people witnessing the police interaction with § 87(2)(b). They were yelling for the officers to stop hitting § 87(2)(b).

§ 87(2)(b) was contacted via telephone on March 30, 2008, March 31, 2008, April 9, 2008 and April 11, 2008 to obtain additional information about her notarized statement and to set up an interview at the CCRB. Voicemail messages were left each time. A final attempt to contact § 87(2)(b) via telephone was made on April 24, 2008. § 87(2)(b) was not home and a message was left with her son § 87(2)(b). Letters were mailed to § 87(2)(b) home address on March 20, 2008 and April 9, 2008 and the letters were not returned to the CCRB. As of the date of this report § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b)

On July 10, 2008, § 87(2)(b) contacted the CCRB via telephone (Encl. 13). § 87(2)(b) stated that she heard screams for help coming from outside of her home at § 87(2)(b), in Brooklyn. When § 87(2)(b) opened her front door she saw a black female and two or three black males bending over § 87(2)(b) at § 87(2)(b). § 87(2)(b) knew that § 87(2)(b) lived at the residence with his grandparents and an older gentleman. She observed a green or black van parked in front of the house with

its doors opened. The porch light was on at § 87(2)(b)'s residence but § 87(2)(b) could not tell if the four people were police officers. § 87(2)(b) did not recall seeing any police uniforms and assumed that § 87(2)(b)'s friends were beating him up.

§ 87(2)(b) was afraid and went inside of her house to call 911. After some time, 2-3 marked patrol cars came arrived. § 87(2)(b) was on the floor, holding on to the rails of his porch and would not let go. Several uniformed officers, black males and black females, went over to § 87(2)(b) and tried to get him up from the ground. § 87(2)(b) was yelling, "Get off of me. I don't have anything." § 87(2)(b) stayed on her porch and yelled to § 87(2)(b) "Let go and cooperate." At this point, § 87(2)(b) assumed that the four individuals she originally saw on top of § 87(2)(b) had been police officers. Several people were outside watching the incident transpire, many of whom lived on the block. Several others had been walking by on the opposite side of the street. The civilians did not interfere with the police. However, they told the officers to stop what they were doing to § 87(2)(b).

PO1 and PO2 came arrived at the location together. PO1 was described as a Hispanic or black male, 5'9" tall, muscular build and in his late 30's. PO1 was wearing a uniform, a police hat and was lighter in skin complexion than all the other officers. PO2 was described as a black female officer. PO1 took out a "billy club" and hit § 87(2)(b) several times. § 87(2)(b) did not know what part of § 87(2)(b)'s body was struck. § 87(2)(b) yelled, "Stop it" to PO1 because she did not feel that it was necessary for him to hit § 87(2)(b). It appeared as if § 87(2)(b) could not get up off of the ground. § 87(2)(b) stated that PO2 was also very aggressive with § 87(2)(b) but she did not elaborate on what she meant. § 87(2)(b) was picked up off of the ground and placed in a marked police car. § 87(2)(b) did not see which officers got into the car with § 87(2)(b). Another neighbor, who witnessed the interaction, talked to one of the officers who held § 87(2)(b) down prior to the additional set of officers arriving at the location. § 87(2)(b) could not hear what that conversation was about. § 87(2)(b) did not obtain any of the officers' names or vehicle numbers and said that she would not be able to recognize any of them in photographs.

§ 87(2)(b) was contacted via telephone on June 16, 2008, June 18, 2008, June 27, 2008 and July 2, 2008. Voicemail messages were left and messages were also left with § 87(2)(b)'s husband, and her nephew, § 87(2)(b). Please-call letters were mailed to § 87(2)(b)'s home on June 16, 2008 and June 27, 2008 and the letters were not returned to the CCRB. § 87(2)(b) contacted the CCRB via telephone on July 10, 2008, at which time she provided a telephone statement and made an appointment for an interview on July 22, 2008. § 87(2)(b) did not appear for her CCRB interview. A final attempt to contact § 87(2)(b) via telephone was made on July 23, 2008. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

Canvass

On March 7, 2008, a canvass was conducted in the vicinity of § 87(2)(b) in Brooklyn (Encl. 14). Letters were left in the mailboxes of § 87(2)(b) and § 87(2)(b) as no one answered the doorbell. Two witnesses, a man and a woman, were standing on the steps of § 87(2)(b). The man stated that he saw something but did not see enough to provide a statement. It was explained to him that anything he saw would be helpful even if he thought it was not enough. The man did not want to go on the record, and took a letter with contact information for the CCRB. The woman, identified through the investigation as § 87(2)(b) stated that she had already made a statement to § 87(2)(b)'s lawyer and did not want to go on record with the CCRB. Several business cards and a letter were given to § 87(2)(b). She said she would call the CCRB and pass the business cards on to other witnesses. No one answered the doorbell at § 87(2)(b). Photos were taken of the outside of the house. The window on the left side of the house was cracked. There was no other visible damage to the windows.

Officer Identification

PO McCloud wrote and issued § 87(2)(b) a summons after their interaction. PO Diab was PO McCloud's partner on December 31, 2007. Sgt. Walls, PO Pietanza, PO Lopez, PO Chaparro, PO Noel and PO Casale were assigned to the sectors/units that responded to the incident based on the SPRINT and roll call. During her CCRB interview, PO Noel indicated the Inspector Vega had also been on the scene.

Officers Statements

PO Anthony McCloud

Police Officer Anthony McCloud, a § 87(2)(b) black male was interviewed at the CCRB on July 24, 2008 (Encl. 16a-c). PO McCloud is § 87(2)(b) with short black hair and brown eyes. On December 31, 2007, PO McCloud worked a tour of 3:00PM-11:35PM. He was assigned to patrol sector J within the 70th Precinct with PO William Diab. Both officers were dressed in uniform and were assigned to a marked patrol car. PO McCloud stated that he wrote memo book entries related to this incident. He did not, however, bring his memo book to his CCRB interview and could not refer to it. PO McCloud's memo book was received from the Internal Affairs Bureau (Encl. 15). The entries from December 31, 2007 indicate that at 10:18PM, one male was stopped on the corner of § 87(2)(b) and § 87(2)(b). At 11:00PM, a summons was issued. Based on the memo book, the duration of the stop would be 42 minutes instead of the 5 minutes that PO McCloud alleged it to be.

On December 31, 2007, at approximately 10:30PM, PO McCloud and PO Diab were on patrol when they observed § 87(2)(b) walking alone, very fast along the sidewalk of § 87(2)(b) and § 87(2)(b) in Brooklyn. PO McCloud was shown a photograph of § 87(2)(b) and confirmed that § 87(2)(b) was the male that he stopped. PO McCloud did not recognize § 87(2)(b) from any previous interactions. The officers had not received any crime-related calls and were not looking for anyone in connection to a robbery. The street was residential but there were no houses on the block, only apartment buildings. § 87(2)(b) and § 87(2)(b) is also the borderline between where the 70th Precinct and the 71st Precinct regularly patrol.

PO McCloud was driving 4-10 miles per hour and PO Diab was in the passenger's seat. § 87(2)(b) was walking along the passenger's side of the police car. It was very dark outside and PO McCloud did not recall if any street lights were on. PO McCloud noticed that § 87(2)(b) was wearing what appeared to be a bulletproof vest that had not been issued by the police department. § 87(2)(b) also had a white scarf tied around his face which covered his nose and mouth. § 87(2)(b) pulled down the scarf when he saw the officers. PO McCloud did not recall if § 87(2)(b)'s clothing was baggy but he noticed a bulge on § 87(2)(b)'s waist line that was the size of a baseball or a fist. PO McCloud stated that the waistband is an area where weapons are commonly concealed and he thought that the bulge was a weapon. § 87(2)(b) was not touching the bulge and he did not make any gestures with his hands.

PO McCloud made the decision to stop § 87(2)(b) in order to investigate why he had on body armor resembling a bulletproof vest and to identify what was causing the bulge in § 87(2)(b)'s waist band. PO McCloud stopped his patrol car directly in front of § 87(2)(b). The officers were still on § 87(2)(b) and § 87(2)(b) and they did not move from that location to § 87(2)(b) and § 87(2)(b). Several people were in the street but a crowd had not formed. Both officers approached § 87(2)(b) and they did not have their guns drawn at anytime. § 87(2)(b) did not run away from the officers and they did not lose sight of him.

PO McCloud told § 87(2)(b) to come over to him so that they could talk. PO McCloud stepped on to the sidewalk and explained to § 87(2)(b) that he wanted to investigate why he was wearing a bulletproof vest and to identify the source of the bulge in his waistband. PO McCloud asked § 87(2)(b) to keep his hands away from his waist so that he could check it but § 87(2)(b) became violent. § 87(2)(b) pushed off of the police car, he had his hands in PO McCloud's and PO Diab's faces, he stomped, clapped his hands and screamed. § 87(2)(b) also started to throw his hands around and cursed at the officers.

After being close to § 87(2)(b) PO McCloud saw that § 87(2)(b) was wearing the outer shell of a bulletproof vest, which was not illegal to wear. PO McCloud immediately began to frisk the bulge on § 87(2)(b)'s waistband which was covered by § 87(2)(b)'s t-shirt. PO McCloud lifted up the shirt and revealed a big cell phone clipped onto § 87(2)(b)'s waist. PO McCloud did not remove the phone or touch it. PO McCloud did not touch any other part of § 87(2)(b)'s body. He and PO Diab did not go into § 87(2)(b)'s pockets. PO McCloud did not recall if PO Diab made any physical contact with § 87(2)(b).

§ 87(2)(b) at this point. The officers were still on the sidewalk and did not go inside or up to any residences at any time during the stop.

§ 87(2)(b) did not explain why he was wearing the shell of a bulletproof vest. PO McCloud stated that § 87(2)(b) was not under arrest at any time and was free to leave once it was established that the bulge was a cell phone. § 87(2)(b) continued to yell and place his hands in the officers' faces. § 87(2)(b) did not listen to PO McCloud's orders against placing his hands near his waist area. § 87(2)(b)'s behavior caused a crowd of 5-10 people to gather. The people were just walking by and some of them crossed onto the same side of the street where § 87(2)(b) and the officers were. The crowd was watching and did not interact with PO McCloud. It did not appear as if any of the civilians knew § 87(2)(b).

PO Diab's role was crowd control. He gave verbal commands to the crowd and kept them back while PO McCloud continued to talk to § 87(2)(b). PO McCloud asked § 87(2)(b) for identification. § 87(2)(b) provided his identification and retrieved it from one of his pant pockets. § 87(2)(b) was not handcuffed at anytime and PO McCloud and PO Diab did not call for back up. PO McCloud stated that no additional officers from his command or any other command came to the location. A supervisor was never at the scene or called to the scene.

§ 87(2)(b) did not attempt to strike PO McCloud or PO Diab. The officers did not have to use any force when dealing with § 87(2)(b) and they did not threaten § 87(2)(b) with the use of force. PO McCloud stated that he did not tell § 87(2)(b) to "shut the fuck up" and he did not threaten to beat him up. PO McCloud issued § 87(2)(b) a summons. § 87(2)(b) PO McCloud stated that the duration of the stop was one minute but once the crowd started to form, it took PO McCloud three minutes to issue § 87(2)(b) a summons. § 87(2)(b) was not placed into the patrol car and he was not taken down to the precinct. PO McCloud stated that he prepared a Stop, Question and Frisk report for the stop and then left.

PO McCloud stated that an asp was never used on § 87(2)(b) and he did not observe any injuries to § 87(2)(b). Photographs of a bruise to § 87(2)(b)'s forehead and a laceration to his right knee were shown to PO McCloud. PO McCloud did not see these injuries on § 87(2)(b) when he interacted with him and he did not know how the injuries were sustained. PO McCloud stated that § 87(2)(b) was never on the ground during their interaction. PO McCloud did not know how the window on § 87(2)(b)'s porch was broken.

A copy of Sprint # § 87(2)(b) was shown to PO McCloud. It indicated that a male was being assaulted on his porch. PO McCloud stated that he does not cover the area of § 87(2)(b) and § 87(2)(b) in Brooklyn and did not see any male getting assaulted on a porch.

PO William Diab

PO William Diab, a § 87(2)(b) white male was interviewed at the CCRB on May 14, 2008 (Encl.18a-c). PO Diab is § 87(2)(b) with short black hair and brown eyes. On December 31, 2007, PO Diab worked a tour of 3:00PM-11:35PM. He was assigned to patrol the 70th Precinct sector J PO Anthony McCloud. Both officers were dressed in uniform and they were assigned to a marked patrol car. PO Diab had entries in his memo book which he read verbatim for the record as: "2218 hours, one male stopped on the corner of § 87(2)(b) and § 87(2)(b). 2300 hours, 96(summons issued) PO McCloud."

§ 87(2)(g)

PO McCloud and PO Diab's patrol car was in motion when PO McCloud saw § 87(2)(b) walking alone and in the same direction that PO McCloud was driving. PO Diab did not recall how quickly PO McCloud was driving and he did not recognize § 87(2)(b) from any previous interactions. PO Diab initially stated that he did not remember what § 87(2)(b) was wearing and later stated that § 87(2)(b) was wearing a jacket. § 87(2)(b) looked like he was holding something in his waistband. PO Diab thought that § 87(2)(b) might have possibly had a gun because the waistband is a common area where a gun may be hidden. PO Diab saw a bulge in § 87(2)(b)'s waistband but could not recall the size or shape. § 87(2)(b)

§ 87(2)(b)'s hands were underneath his jacket and he was holding his waist area and moving the bulge around. PO Diab stated that the only other thing that was suspicious about § 87(2)(b) was that he looked at the officers and then looked away.

The officers tried to approach § 87(2)(b) right away in order to stop him but § 87(2)(b) started to walk faster. PO Diab intended to see if § 87(2)(b) had a weapon and then fill out a Stop, Question and Frisk Report if he did not. PO McCloud said, "Police. Don't move," but § 87(2)(b) started running down § 87(2)(b). The officers got out of their patrol car to chase § 87(2)(b) but he went into an alleyway between a private house and an apartment building. The alleyway was ten feet from where the officers originally told § 87(2)(b) to stop. The officers lost sight of § 87(2)(b) for 10-15 seconds. At this point, PO Diab feared for his safety.

PO Diab and PO McCloud removed their guns from their holsters but they did not point them. § 87(2)(b) came out of the alleyway and walked toward the officers with his hands in his pockets. § 87(2)(b) stopped at the front of the private house and looked like nothing had happened. PO Diab did not know who lived at the private house and § 87(2)(b) did not say later that he lived there. PO Diab did not have any knowledge of where § 87(2)(b) lived in relation to where he was stopped. PO Diab did not recall the distance that he and PO McCloud were from the curb and indicated that there was no gate or porch in front of the house. The bulge that was on § 87(2)(b)'s waistband previously was no longer visible. PO Diab said, "Police. Don't move." He holstered his weapon and started to approach § 87(2)(b).

§ 87(2)(b) was irate and "going crazy." § 87(2)(b) told the officers that he did not have to stop and he asked why they were stopping him. PO Diab told § 87(2)(b) that he needed to see § 87(2)(b)'s hands. PO Diab explained to § 87(2)(b) that he was being stopped because the officers thought he had a weapon. § 87(2)(b) said that he did not have a weapon. PO Diab tried to frisk § 87(2)(b) to see if he had anything in his waist band. § 87(2)(b) was uncooperative and started to move around and push PO Diab's hands away. After a while, § 87(2)(b) put his hands up and allowed PO Diab to frisk him. PO McCloud did not frisk § 87(2)(b). § 87(2)(b) was not positioned on a wall and PO Diab did not recall § 87(2)(b) putting his hands up against a window. PO Diab did not recall if any civilians or any additional officers were around when he frisked § 87(2)(b). After PO Diab did not find anything, PO McCloud holstered his weapon.

§ 87(2)(b) was mad, violent and aggressive, and cursed at the officers. Six to eight civilians began to gather and the officers told § 87(2)(b) to calm down. The civilians were a few feet away from the officers and § 87(2)(b). PO Diab did not remember if the civilians knew § 87(2)(b). PO Diab stated that § 87(2)(b)'s behavior was disorderly because he would not calm down and a crowd formed. § 87(2)(b) also refused a lawful order by police. PO Diab told § 87(2)(b) that he was trying to take down his name, address and pedigree information in order to write a Stop, Question and Frisk Report. PO Diab asked § 87(2)(b) for identification. At first, § 87(2)(b) refused, and then he calmed down and went into his pocket to produce his identification. PO Diab did not recall how long it took § 87(2)(b) to obey his commands. PO Diab did not recall seeing PO McCloud going into § 87(2)(b)'s pockets.

The officers brought § 87(2)(b) over to their police car to talk to him. When PO McCloud started to write the summons, § 87(2)(b) became irate again. The civilians were standing three to four feet away from PO Diab, PO McCloud and § 87(2)(b). The civilians just watched and did not intervene. PO Diab did not say anything to the crowd. He and PO McCloud did not use profanity when talking to § 87(2)(b). At 11:00PM, PO McCloud wrote and issued § 87(2)(b) a summons § 87(2)(b). A Stop, Question and Frisk Report was not filled out. The entire interaction with § 87(2)(b) lasted 40 minutes.

PO Diab stated that § 87(2)(b) was never handcuffed. He and PO McCloud did not search any of § 87(2)(b)'s pockets. PO Diab did not hear PO McCloud say to § 87(2)(b) "Shut the fuck up before I beat you up." Neither PO Diab nor PO McCloud threatened § 87(2)(b) with physical force. They did not call for back up. PO Diab did not remember whether additional officers arrived at the scene at any point during the interaction. PO Diab did not recall if a sergeant or any other high-ranking officer ever came to the scene. The officers did not leave the location where § 87(2)(b) was stopped and § 87(2)(b) was never placed in the officers' RMP. PO Diab and PO McCloud did not have any physical interaction with § 87(2)(b) and an asp was never used during the interaction. PO Diab did not recall if § 87(2)(b) ever fell

to the ground. PO Diab did not recall if § 87(2)(b) had any injuries. PO Diab did not forcibly remove § 87(2)(b) from his patrol car and did not throw his personal items onto the ground.

PO Diab was shown a color photograph of § 87(2)(b) with a bruise on the right side of his forehead, but did not recall if he saw the bruise when he interacted with § 87(2)(b). A photograph was shown of a laceration to § 87(2)(b)'s right knee. PO Diab did not notice whether § 87(2)(b) was bleeding during their interaction. § 87(2)(b) did not say that he wanted to go to the hospital. PO Diab did not place § 87(2)(b) on or next to any windows at the residence. A photograph of the broken window on the front porch of § 87(2)(b)'s home at § 87(2)(b) was shown to PO Diab. PO Diab stated that he was never on § 87(2)(b) and he did not know how the window was broken.

Inspector Frank Vega

Inspector Frank Vega, a § 87(2)(b) white male was interviewed at the CCRB on September 15, 2008 (Encl. 23a-c). Ins. Vega is § 87(2)(b) with short black and gray hair and brown eyes. Ins. Vega is currently assigned to Patrol Borough Staten Island but on December 31, 2007, he was the commanding officers at the 71st Precinct in Brooklyn. On December 31, 2007, Ins. Vega worked a tour of 4:00PM to 12:00AM. Ins. Vega was working alone, dressed in uniform and driving unmarked vehicle § 87(2)(e), a black jeep 4x4. Ins. Vega does not keep a memo book.

Ins. Vega was driving southbound on § 87(2)(b). As he approached the intersection of § 87(2)(b) he saw a marked 70th Precinct patrol car parked off the corner. Both doors of the police car were opened. Officers were not inside. Ins. Vega parked his vehicle and walked towards § 87(2)(b). A couple of patrol cars from the 71st Precinct were outside. On the north side of the street, uniformed police officers had an individual rear handcuffed on the stoop of § 87(2)(b). The stoop was two-three steps up on a porch area connected to the residence. The individual was a black male, 5'8"-5'10" tall with a thin build. Ins. Vega was shown a picture of § 87(2)(b) and confirmed that he was the individual that was in handcuffs. Ins. Vega did not recall what § 87(2)(b) was wearing and did not see him wearing a bulletproof vest. § 87(2)(b) was standing up and the officers were talking to him. He seemed agitated at being stopped and arrested.

Ins. Vega went onto the stoop of the residence. PO Pietanza and Sgt. Walls from the 71st Precinct were on the stoop as well as two male officers from the 70th Precinct, identified through the investigation as PO Diab and PO McCloud. Additional officers from the 71st Precinct were standing on the street level of the residence. The situation seemed to be under control and § 87(2)(b) was compliant. Ins. Vega was informed by officers from the 71st Precinct that a 911 call was made by someone who viewed a disturbance on the stoop. As a result, the 71st Precinct officers responded. § 87(2)(b) and § 87(2)(b) is near the borderline of the 70th Precinct. PO Diab and PO McCloud informed Ins. Vega that a commercial robbery had occurred earlier that day within the confines of their precinct. § 87(2)(b) fit the description of the robbery suspect and when they tried to stop him, he fled. The officers did not describe what about § 87(2)(b) made him fit the description of the robbery suspect. The officers did not articulate whether § 87(2)(b) made any furtive movements or had any suspicious bulges on this person. A short foot pursuit ensued and § 87(2)(b) was apprehended and handcuffed. PO Diab and PO McCloud did not explain how they effected the arrest and did not indicate that force or an asp had been used. Ins. Vega did not ask about the length of time that had passed since § 87(2)(b) was stopped. Ins. Vega did not know if someone else had been identified in the robbery. Ins. Vega explained that the 70th Precinct was on a different radio frequency from the 71st Precinct so he was not aware of any robberies occurring nearby.

PO Diab and PO McCloud were bringing § 87(2)(b) back to their precinct for further questioning. § 87(2)(b) was not frisked or searched at anytime while Ins. Vega was present. § 87(2)(b) did not engage in any disorderly behavior while Ins. Vega was present. § 87(2)(b) did not make any comments and did not use profanity. Ins. Vega did not hear any of the officers using profanity towards § 87(2)(b). Ins. Vega made sure that the officers were accounted for and that there were no injuries to § 87(2)(b) or the officers. § 87(2)(b) did not complain of injuries or pain and did not ask to be taken to the hospital.

Ins. Vega did not know if § 87(2)(b) was ever taken to the hospital as a result of his interaction with the officers. Photographs of the injuries that § 87(2)(b) obtained were shown to Ins. Vega. He indicated that he did not see a gash on § 87(2)(b)'s head or any laceration or bruise to § 87(2)(b)'s body. Ins. Vega instructed PO Diab and PO McCloud to take § 87(2)(b) to their precinct and told the 71st Precinct personnel to resume patrol. § 87(2)(b) walked to a patrol car with PO McCloud and PO Diab. Ins. Vega assumed that the officers would either prove or disprove that § 87(2)(b) was involved in the robbery and then make their next decision based on that. Ins. Vega did not see § 87(2)(b) get into PO Diab and PO McCloud's patrol car. Ins. Vega had been at the location for 3-4 minutes and went back to the 71st Precinct before PO Diab and PO McCloud had left the scene.

Ins. Vega did not know if an arrest was processed for § 87(2)(b) or if he was issued a summons. He did not see PO Pietanza do anything to § 87(2)(b) and did not see § 87(2)(b) on the floor at anytime. Ins. Vega did not interact with any civilians while he was at the scene. Ins. Vega did not recall any uniformed female officers being present and he could not provide the race of the officers he saw from the 71st Precinct. Ins. Vega did not see any injuries on § 87(2)(b). He did not know if § 87(2)(b) lived at the residence and did not see anyone come outside of the residence. Ins. Vega did not see any damage to the residence or to a window.

Sgt. Gabrielle Walls

Sergeant Gabrielle Walls, a § 87(2)(b) black female was interviewed at the CCRB on June 18, 2008 (Encl. 20a-b). Sgt. Walls is § 87(2)(b) with long black hair and brown eyes. Sgt. Walls worked a tour of 5:15PM on December 31, 2007 to 6:12AM on January 1, 2008. Her assignment was the Impact Supervisor and PO John Pietanza was her driver for the day. Both officers were dressed in uniform and they were assigned to a marked patrol car. Sgt. Walls did not have any entries in her memo book related to this incident.

Sgt. Walls did not have an independent recollection of this incident. A copy of SPRINT #§ 87(2)(b) was shown to Sgt. Walls which indicated that a call had been placed about a male who was screaming for help after being held down by two other males on § 87(2)(b) and § 87(2)(b). At 10:29PM a Sergeant arrived on the scene. Sgt. Walls confirmed that she was the Impact sergeant on the date of the incident but she did not remember a call for assistance on § 87(2)(b) and § 87(2)(b). Sgt. Walls did not recall going to this street and dealing with a large crowd. She was shown a picture of § 87(2)(b) and did not recognize the photo. Sgt. Walls did not recall interacting with officers from the 70th Precinct. The SPRINT also indicated that Sector A, Post 4 and Post 7 responded to the location as well. The finalized roll call for Tour 3 showed that PO Chaparro and PO Lopez were assigned to sector A. Sgt. Walls did not recall going to a job with these officers and she did not recall working with them. PO Casale was assigned to Post 4 and PO Noel was assigned to Post 7. Sgt. Walls stated that she checked the memo books of PO Casale and PO Noel at 7:40PM but she did not recall any other interaction with the officers.

PO John Pietanza

Police Officer John Pietanza, a § 87(2)(b) white male was interviewed at the CCRB on August 14, 2008 (Encl. 22a-b). PO Pietanza is § 87(2)(b) with short black hair and brown eyes. PO Pietanza is currently working at the Brooklyn South Task Force but on December 31, 2007, he was working at the 71st Precinct. PO Pietanza worked a tour of 5:35 PM on December 31, 2007 to 2:05AM on January 1, 2008. His assignment was Sergeant Operator for Sgt. Gabrielle Walls. Both officers were dressed in uniform and assigned to marked RMP# 1561. PO Pietanza did not have entries in his memo book regarding this incident.

PO Pietanza and Sgt. Walls were on § 87(2)(b) and § 87(2)(b) when a call came over the radio for an incident happening on § 87(2)(b) and § 87(2)(b). PO Pietanza did not recall what type of call came over the radio. Sgt. Walls was the Impact Sergeant and when they arrived, they saw a commotion and 5 people outside of a residence on § 87(2)(b) two houses away from the corner of § 87(2)(b). The people were yelling at the officers but PO Pietanza did not recall what was said. A patrol car was parked on § 87(2)(b). PO Pietanza parked on § 87(2)(b) and got out of the car.

Two male officers and a skinny, black male suspect were on the porch of the residence. The officers were identified as identified through the investigation as PO Anthony McCloud and PO William Diab. The male suspect was identified as § 87(2)(b). A photograph of § 87(2)(b) was shown to PO Pietanza and he did not recognize him.

PO Pietanza did not see § 87(2)(b) wearing a bulletproof vest. He also did not personally know PO McCloud and PO Diab and he could not describe the officers' race or any other physical characteristics about them. These officers (PO Diab and PO McCloud) were inside the gate of the residence one step up from the street level. § 87(2)(b) was lying face-down on the ground and PO McCloud and PO Diab were trying to handcuff him. § 87(2)(b) was resisting arrest by moving around. One of the officers had one of § 87(2)(b)'s arms and the other officer had the other arm. § 87(2)(b) was trying not to get handcuffed. PO Pietanza walked over to the officers to assist them in handcuffing § 87(2)(b). § 87(2)(b)'s left hand was in one handcuff and the officers were trying to get § 87(2)(b)'s right hand in the other handcuff. PO Pietanza moved § 87(2)(b)'s right hand over so it could be placed in the other handcuff. The officers did not have to take any additional action to keep § 87(2)(b) under control. PO Pietanza did not use an asp and he did not see any of the officers use one. PO Pietanza did not see any officer touch parts of § 87(2)(b)'s body, other than his hands.

Within 30 seconds, § 87(2)(b) was placed in handcuffs. Sgt. Walls was right behind PO Pietanza but she did not do anything because they were in a tight space which prevented her from assisting. PO Pietanza did not hear Sgt. Walls say anything to PO McCloud and PO Diab. PO Pietanza, Sgt. Walls, PO McCloud, PO Diab and § 87(2)(b) were the only people on the steps of the residence. PO Pietanza did not see anyone come outside of the residence and he did not see a broken window or any damage to the residence. PO McCloud and PO Diab stood § 87(2)(b) up and walked him to their patrol car. § 87(2)(b) was cooperative and PO Pietanza did not recall hearing § 87(2)(b) and the officers say anything to each other. PO Pietanza did not hear any profanity being used by anyone. He did not see any visible injuries to § 87(2)(b) and did not see § 87(2)(b) bleeding. § 87(2)(b) did not complain of pain or request to go to the hospital.

Additional officers were on the scene trying to keep civilians away because a crowd started to gather. PO Pietanza did not recall the sex of the officers. A copy of SPRINT # § 87(2)(b) was shown to PO Pietanza. He did not recall if PO Lopez, PO Chaparro, PO Casale came to the location. PO Pietanza did not recall if the officers gave the crowd verbal commands. The civilians were yelling but PO Pietanza did not recall what they were saying. PO Pietanza did not see PO McCloud and PO Diab filling out any paperwork. PO Pietanza started to walk towards his patrol car and did not see if PO McCloud and PO Diab placed § 87(2)(b) inside of their patrol car. PO Pietanza did not know if § 87(2)(b) was searched or frisked.

As PO Pietanza was walking back to his patrol car, he saw PO Noel arriving. Sgt. Walls told PO Noel that the incident was over. PO Pietanza recalled seeing a male sergeant but did not recall what command the sergeant was from. The crowd was still outside when PO Pietanza and Sgt. Walls resumed patrol. As of the date of the CCRB interview, PO Pietanza did not know why the male was on the ground or why he was being handcuffed.

PO Melissa Lopez

Police Officer Melissa Lopez, a § 87(2)(b) Hispanic female, was interviewed at the CCRB on July 24, 2008 (Encl. 25a-b). PO Lopez is § 87(2)(b), with brown hair and brown eyes. On December 31, 2007, PO Lopez worked a tour of 4:00PM-12:00PM. Her partner was PO Veronica Chaparro. Both officers were dressed in uniform and assigned to patrol Sector A within the 71st Precinct. The officers were assigned to marked patrol car #1383 in which PO Lopez was the operator. PO Lopez did not have any entries in her memo book regarding this incident. She read entries verbatim for the record as "1913 hours, 98 (resume patrol). 2335 hours, end of tour." There are no memo book entries between 7:13PM and 11:35 PM.

PO Lopez received a radio call indicating that officers needed assistance at § 87(2)(b). She and PO Chaparro responded quickly. Four black male officers from the 70th Precinct were on the porch and a black

male, identified through the investigation as § 87(2)(b) was in handcuffs. A picture of § 87(2)(b) was shown to PO Lopez and she did not recognize him. The porch was big and was up four steps from the street level. One of the officers from the 70th Precinct was PO McCloud. PO Lopez knew PO McCloud personally. Although the 70th Precinct roll call indicated that PO McCloud's partner on this date was PO Diab, PO Lopez did not know PO Diab and did not know if he was present. PO Lopez could not describe what § 87(2)(b) looked like or what was wearing. She did not know if § 87(2)(b) lived at the residence where he was being arrested and did not see any visible injuries on him.

A crowd of seven people began to form, some of which were black females. PO Lopez did not know if the people lived in the area and she did not hear anyone say anything about the police activity. PO Lopez and PO Chaparro went inside the gate of the house and stayed at the bottom of the porch stairs. The male officers were talking about where § 87(2)(b) was going to go and in which car he would go. PO Lopez did not ask the officers what happened and as of the date of her CCRB interview, she did not know why § 87(2)(b) was being arrested. She did not see any officers search or frisk § 87(2)(b) or have any physical interaction with § 87(2)(b). PO Lopez did not see any officers use an asp. § 87(2)(b) walked down the porch steps and to a marked patrol car. PO McCloud and his partner placed § 87(2)(b) into their patrol car. PO Lopez and PO Chaparro left the scene before PO McCloud drove away. PO Lopez and PO Chaparro were on the scene for two minutes. PO Lopez did not recall seeing any Hispanic male officers and she did not recall seeing officers from her command. A copy Sprint Job #§ 87(2)(b) did not jog the officer's memory.

PO Veronica Chaparro

Police Officer Veronica Chaparro, a § 87(2)(b) Hispanic female was interviewed at the CCRB on July 29, 2008 (Encl. 27a-b). PO Chaparro is § 87(2)(b) with brown hair and brown eyes. On December 31, 2007, PO Chaparro worked a tour of 4:00PM-12:00PM. She was assigned to patrol Sector A within the 71st Precinct and her partner was PO Melissa Lopez. Both officers were dressed in uniform and assigned to marked patrol car #1383 in which PO Chaparro was the operator. PO Chaparro did not have any entries in her memo book related to the incident.

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PO Chaparro and PO Lopez responded to a radio run which stated that a male was being held down and possibly assaulted. The radio run did not indicate whether police officers were involved. When they arrived at the scene, a radio car was outside of a residence. Several residential houses were on the street and the house where the officers were was closer to § 87(2)(b). There were no apartment buildings on the block.

PO Chaparro got out of the car and saw two uniformed officers on the porch of a residence. One of the officers was PO Anthony McCloud. PO Chaparro and PO McCloud were in the same company within the police academy and she knew he went to the 70th Precinct once he became a police officer. The other officer was a Hispanic male with a light brown complexion. PO Chaparro did not know PO McCloud's partner's name but he is identified through the investigation as PO William Diab. PO Chaparro and PO Lopez went into the yard of the residence but they did not go on the porch. A male, identified as § 87(2)(b) was rear handcuffed and lying face-down on the ground. A picture of § 87(2)(b) was shown to PO Chaparro and she did not recall if § 87(2)(b) was the male she saw being arrested. § 87(2)(b) was moving around as if he was trying to turn over to his back or his side. PO McCloud and PO Diab were holding § 87(2)(b)'s wrist area and trying to get him up from the ground. The officers did not have to take any additional action in order to control § 87(2)(b). A black female was also outside but PO Chaparro did not recall where the woman was standing. PO Chaparro did not see any additional civilians outside at this point. She asked PO McCloud and PO Diab if they were okay. They said that they were fine and said that they had the situation under control. § 87(2)(b) was not saying anything and the officers were not saying anything to him.

PO Diab and PO McCloud picked § 87(2)(b) up and immediately walked him to their patrol car. PO Chaparro did not recall if § 87(2)(b) had any visible injuries. She did not recall any additional civilians

being outside and did not know if anyone came out of the residence where § 87(2)(b) had been. PO Chaparro did not see the officers engage in any physical interaction with § 87(2)(b). She did not hear the officers give § 87(2)(b) any verbal commands at anytime. She did not see PO McCloud or PO Diab use an asp on § 87(2)(b).

PO Chaparro and PO Lopez were the only officers from the 71st Precinct on the scene. When they were leaving, other units responded to the location. PO Chaparro did not see Sgt. Walls, PO Pietanza, PO Casale and PO Noel from her command at the scene at anytime. PO Chaparro and PO Lopez were on the scene for less than five minutes and did not see any additional officers besides PO McCloud and PO Diab.

PO Julie Casale

Police Officer Julie Casale, a § 87(2)(b) Hispanic female was interviewed at the CCRB on August 11, 2008 (Encl. 29a-b). PO Casale is § 87(2)(b) with long, dark brown hair and brown eyes. PO Casale worked a tour of 5:30PM on December 31, 2007 to 2:05AM on January 1, 2008. Her assignment was Foot Post #4. The post covered § 87(2)(b) from § 87(2)(b) to § 87(2)(b) in Brooklyn. PO Casale was working alone and dressed in uniform. She did not have any memo book entries regarding this incident.

PO Casale read a memo entry from around the time of the incident verbatim for the record as: “2030 hours, meal. 2130 hours, resume patrol. 2220 hours, vertical patrol at § 87(2)(b). 2240 hours, resume patrol.” PO Casale stated that she and PO Noel were doing a vertical patrol at § 87(2)(b) in Brooklyn. They heard a call come over on the radio regarding a foot pursuit on § 87(2)(b) and § 87(2)(b). She did not remember hearing a radio run as a possible assault in progress. PO Casale and PO Noel left the vertical patrol and ran two and a half blocks to § 87(2)(b). As they were arriving, they saw Sgt. Walls and PO Pietanza getting out of a marked patrol car outside of a residence on the corner of § 87(2)(b) and § 87(2)(b). Two officers from the 70th Precinct were on the porch of the residence placing handcuffs on a male who was on the ground. PO Casale did not recall if the 70th Precinct officers were male or female and did not know them. PO Casale knows PO Chaparro and PO Lopez but did not recall seeing them at the scene.

It was dark outside but the lights on the porch were on. PO Casale was shown a photograph of § 87(2)(b) and did not recognize him as the male who was on the porch. (The investigation determined that § 87(2)(b) was on the porch and will refer to him by name.) PO Casale assumed that § 87(2)(b) was under arrest and saw 70th Precinct officers picked him up from the ground. The officers did not appear to struggle with § 87(2)(b) or need assistance. PO Casale did not see any of the officers have any physical interaction with § 87(2)(b). PO Casale did not hear § 87(2)(b) say anything and she did not hear the officers give § 87(2)(b) any verbal commands. Sgt. Walls talked with the officers from the 70th Precinct. PO Casale did not hear their conversation. PO Casale and PO Noel stayed near a residence next door to where the 70th Precinct officers and § 87(2)(b) were. At no time did they enter or go onto the porch of the residence where § 87(2)(b) had been handcuffed. PO Casale did not interact with the officers from the 70th Precinct. She did not see the officers write down anything or issue § 87(2)(b) a summons. She did not see any visible injuries and did not hear § 87(2)(b) request medical attention. § 87(2)(b) was placed into a patrol car with the officers from the 70th Precinct. Sgt. Walls told PO Noel and PO Casale to be back at the 71st Precinct at 11:00PM. Both officers resumed patrol and went back to the vertical on § 87(2)(b). PO Casale did not know why § 87(2)(b) had been arrested or what happened prior to her arrival. PO Casale does not know PO William Diab or PO Anthony McCloud from the 70th Precinct and was not sure if they were the officers at the scene.

PO Alisha Noel

Police Officer Alisha Noel, a § 87(2)(b) black female was interviewed at the CCRB on August 15, 2008 (Encl. 31a-b). PO Noel is § 87(2)(b) with long black hair and brown eyes. PO Noel is currently working at the 123rd Precinct but on the date of the incident she had been assigned to the 71st Precinct. On December 31, 2007, PO Noel worked from 5:35PM-5:05AM on January 1, 2008. She was foot post #7 and worked with PO Gavingan and PO Casale whom were working at Post #3 and Post #4,

respectively. PO Noel read entries from her memo book that coincided with the time of the incident verbatim for the record as: “2235 hours, 10-10 on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) § 87(2)(b). 2235 hours, 84. 2245 hours, 10-02 with Sgt. Walls to the command.” PO Noel explained that a 10-10 is a call for help or a job in progress. Code 84 meant that she arrived on the scene and 10-02 refers to her going back to the command with her Sergeant.

PO Noel did not have an independent recollection of this incident. A copy of Sprint # § 87(2)(b) jogged her memory as it indicated that PO Chaparro, PO Lopez, Sgt. Walls, and PO Casale responded to the job.

When PO Noel and PO Casale arrived at § 87(2)(b) she saw patrol cars outside of a residence that was a few houses from the corner of § 87(2)(b) PO Noel did not recall how many patrol cars were outside but some were parked on § 87(2)(b) and the others were parked along § 87(2)(b) Inspector Frank Vega was standing near his car and male officers from other commands were present. PO McCloud and PO Diab from the 70th Precinct were listed as subject officers but PO Noel did not know them. Sgt. Walls and her driver, PO Pietanza, were at the scene as well. PO Pietanza and Ins. Vega were the only white males who PO Noel recalled being on the scene. PO Noel did not recall seeing any light-skinned male officers.

An African American male suspect, identified through the investigation as § 87(2)(b) was in handcuffs and standing near a patrol car. PO Noel did not see § 87(2)(b) on the porch of the residence and did not see any officers struggling with him. PO Noel did not know what command the officers that had § 87(2)(b) in custody were from and stated that the officers were not from her command. PO Noel did not see officers frisk and or search § 87(2)(b) PO Noel did not recall what § 87(2)(b) was wearing. PO Noel did not get very close to § 87(2)(b) and did not recall if he was wearing a bulletproof vest or not. She did not recall seeing any visible injuries on § 87(2)(b) and did not recall if § 87(2)(b) was placed into a patrol car.

Several people were outside watching the incident but PO Noel did not recall how many were there. She did not recall if the civilians did or said anything to the officers. PO Noel did not speak with any of the officers and did not recall hearing § 87(2)(b) say anything. She did not recall if the officers or § 87(2)(b) used profanity. PO Noel did not recall how many feet she stood away from § 87(2)(b) and the other officers. She did not see any officers filling out any paperwork while she was there. She did not see any officers use physical force or an asp on § 87(2)(b) PO Noel was on the scene for two minutes. Sgt. Walls told her that she could resume patrol because everything was under control. Afterwards, PO Noel went to the 71st Precinct. She did not recall if she went back to her command with Sgt. Walls or not. As of the date of the CCRB interview, PO Noel had no knowledge of what happened to § 87(2)(b) or what led him to be placed in handcuffs.

Medical Records

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Police Documents

SPRINTS

SPRINT# § 87(2)(b) At 10:27PM, a female caller, identified as § 87(2)(b) § 87(2)(b) stated that two officers were outside holding down a guy on the porch of § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn (Encl. 34a-d). The guy was screaming for help. At 10:29PM, a sergeant from the 71st Precinct arrives on the scene along with foot posts 4 and 7. At 10:30PM, Sector A arrives at the

scene. At 11:28PM, the final disposition from all four units on the scene is 10-91, which is non-crime corrected.

SPRINT #§ 87(2)(b) At 8:39PM, a male caller by the name of§ 87(2)(b) stated that two males wearing masks on their faces robbed § 87(2)(b) at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn (Encl. 36a-c). One of the males was wearing a brown jacket and the caller was unsure if a gun was used. A male with a brown hoodie fled east bound on § 87(2)(b) and one shot was fired. An anti-crime unit, a foot post, a sergeant and Sector I from the 70th Precinct responded to the location and filled out a complaint report.

Roll Call

The 70th Precinct finalized Tour 3 roll call indicates that PO McCloud and PO Diab were partnered and worked a Tour of 3:00PM-11:35PM. The officers were assigned to patrol sector J (Encl. 37c). The 71st Precinct finalized roll call for Tour 3 indicates that Sgt. Walls worked a tour of 5:15PM on December 31, 2007 to 2:12PM on January 1, 2008 (Encl. 38a-j). Her assignment was Impact Sergeant. PO Pietanza worked a tour of 5:30PM on December 31, 2007 to 2:05PM on January 1, 2008. His assignment was the sergeant's operator. PO Chaparro and PO Lopez were partnered and worked a tour of 3:00PM-11:35PM. They were assigned to patrol sector A and were in marked RMP# 1383. PO Casale and PO Noel worked a tour of 5:30PM on December 31, 2007 to 2:05PM on January 1, 2008. PO Casale is assigned to foot post 4 and PO Noel is assigned to foot post 7.

Summons

§ 87(2)(b) was issued summons #§ 87(2)(b) § 87(2)(b) on December 31, 2007 by PO McCloud, tax# 938979 (Encl. 39a-b). § 87(2)(b) was in violation of penal law section 240.20, subsection 6. The summons was issued at 10:56PM, on § 87(2)(b) in Brooklyn. The complete address on the summons is not legible. § 87(2)(b)

Notice of Claim

§ 87(2)(b) filed a notice of claim on § 87(2)(b) (Encl.40a-e). He is seeking money damages for false arrest, unlawful imprisonment and injuries sustained as a result of his interaction with police officers.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officer's CCRB History

PO Anthony McCloud has been employed by the NYPD for three years and has no substantiated allegations.

Civilian's CCRB History

This is the first time that § 87(2)(b) has filed a complaint with the CCRB.

Conclusions and Recommendations

Subject Officer Identification

§ 87(2)(b) identified PO McCloud as one of the two officers that originally interacted with him. § 87(2)(b) alleged that PO McCloud forcibly stopped him, searched him and pulled him onto the floor. § 87(2)(g) § 87(2)(b) stated that PO Diab pulled him out of the patrol car and threw his personal items onto the ground. § 87(2)(g) § 87(2)(b) stated that unidentified officers hit him with an asp. § 87(2)(b) could not see the officers because he was lying face down on the ground. Although, § 87(2)(b) and § 87(2)(b) also alleged that § 87(2)(b) was struck by an asp, they did not contact the CCRB and therefore could not assist in identifying the officers that allegedly used an asp. § 87(2)(g)

Undisputed Facts

It is undisputed that in some manner § 87(2)(b) was stopped by PO McCloud, searched and issued a summons. A crowd of people began to form as the officers interacted with § 87(2)(b) and additional officers responded to the scene.

Disputed Facts

§ 87(2)(g) [REDACTED]

Assessment of the Evidence

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that he was wearing a hooded jacket, jeans and an army fatigue vest when he was approached by PO Diab. PO McCloud stated that he made the decision to stop § 87(2)(b) because he was wearing what appeared to be a bulletproof vest that had not been issued by the police department and because § 87(2)(b) had a bulge on his waist line the size of a baseball or fist. § 87(2)(g)

Both officers stated that § 87(2)(b) was not the suspect of a crime and they had not been looking for anyone when they approached him. The witness officers interviewed were not present when § 87(2)(b) was initially stopped and could not provide any insight into the reason that § 87(2)(b) had been stopped.

§ 87(2)(g)

§ 87(2)(g) . § 87(2)(b) alleged that PO McCloud had his gun drawn and pointed chest-level when he approached § 87(2)(b) PO McCloud denied having his gun drawn at anytime. PO Diab stated that PO McCloud did have his gun drawn but it was not pointed at § 87(2)(b) § 87(2)(g)

§ 87(2)(g) . § 87(2)(b) alleged that PO McCloud went into his pants and jacket pockets but did not find anything. PO McCloud denied going into § 87(2)(b) s pockets but he admitted lifting up § 87(2)(b) s shirt. § 87(2)(g)

§ 87(2)(g) . § 87(2)(b) alleged that PO McCloud pushed his body into the window on his porch. PO McCloud then grabbed § 87(2)(b) s legs and pulled him onto the floor. § 87(2)(b) and § 87(2)(b) also stated that officers used physical force against § 87(2)(b) but because § 87(2)(b) did not appear at the CCRB for an interview, the details of the interactions the officers had with § 87(2)(b) is unknown. § 87(2)(b) s account of what occurred is limited to what happened after additional officers had arrived at the location. PO McCloud denied having any physical interaction with § 87(2)(b) § 87(2)(g) PO Pietanza, PO Chapparro, PO Lopez and PO Casale indicated that when they arrived at § 87(2)(b) § 87(2)(b) was on the ground of his porch. § 87(2)(b) also went to the hospital on the same day and alleged that officers beat him up. He suffered an abrasion to the left leg with no active bleeding, a facial abrasion and pain and swelling in his right ankle.

§ 87(2)(g)

§ 87(2)(g) . § 87(2)(b) alleged that he was handcuffed after being on the ground of his porch and then placed into a patrol car with PO McCloud and PO Diab. PO McCloud denied that § 87(2)(b) was ever handcuffed or placed in a patrol car during the interaction. § 87(2)(g) . Ins Vega, PO Pietanza, PO Lopez, PO Chaparro, PO Casale, and PO Noel stated that § 87(2)(b) was handcuffed. All of the officers except PO Noel stated that § 87(2)(b) was also placed in the rear of a patrol car. § 87(2)(g)

§ 87(2)(g) . § 87(2)(b) alleged that while he was in the back of PO McCloud's patrol car, PO McCloud said to him, "Shut the fuck up before I beat you up." PO McCloud denied that § 87(2)(b) was ever in his patrol car and denied making this statement. § 87(2)(g)

§ 87(2)(g) . § 87(2)(b) alleged that PO Diab pulled him by the arms, out of the patrol car and then threw the item that he removed from § 87(2)(b) s pockets earlier and threw them on the ground. PO Diab denied doing so and denied ever having § 87(2)(b) in the back of his patrol car. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) alleged that PO McCloud had his gun drawn and pointed at him and also alleged that PO McCloud pushed him into the glass window of his residence. § 87(2)(g)

§ 87(2)(b) alleged that a window on his front porch was broken as a result of PO McCloud pushing him into it. § 87(2)(g)

§ 87(2)(b) alleged that PO Diab searched him after he was in handcuffs and on the ground. § 87(2)(b) was later issued a summons. § 87(2)(g)

§ 87(2)(b) alleged that PO McCloud said, “Shut the fuck up before I beat you up”. § 87(2)(g)

Allegation A: PO Anthony McCloud forcibly stopped § 87(2)(b)

§ 87(2)(b) alleged that PO McCloud stopped him, with his gun drawn and pointed in front of his residence. The officer told § 87(2)(b) that he was a suspect in a robbery. PO McCloud then pushed § 87(2)(b) into the window of his residence, grabbed his legs and pulled him onto the floor. PO McCloud stated that § 87(2)(b) had not been suspected in a robbery but he was stopped for wearing what appeared to be a bulletproof vest and because he had a suspicious bulge on his waistband. § 87(2)(g)

According to the NYPD’s memo book legal issues insert, officers can conduct a level-three stop when they have “reasonable suspicion that a person is committing, has committed or is about to commit a felony or Penal Law misdemeanor (Encl. 2)... Reasonable suspicion exists when the information known to the member of service is of such weight and persuasiveness as to make the member of service reasonably suspect criminality.” With regard to the force that can be used, “The type and the amount of force used must ultimately be objectively reasonable under the attendant circumstances facing the member of service. Thus, the more violent an encounter, the greater the physical force that may be employed.” According to People v. Batista, 88 N.Y.2d 650 (1996), “wearing a bullet proof vest is not, itself, illegal, the appellate court found. The court has expressly noted the inherit linkage between a vest and possession of a firearm...Although a bulletproof vest is properly linked to the inference that the wearer might be carrying a gun, more is usually required to justify a frisk of the suspect” (Encl. 3b-d) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that allegation A be closed as “*Substantiated.*”

§ 87(2)(b) alleged that PO McCloud searched the pockets of his pants and jacket. PO McCloud denied going into § 87(2)(b)'s pockets but admitted that he lifted up § 87(2)(b)'s shirt to reveal the source of the bulge on his waistband. § 87(2)(g)

Allegation C: Officers struck § 87(2)(b) with an asp.

It is therefore recommended that allegation C be closed as “*Officers Unidentified.*”

§ 87(2)(b) alleged that while he was in the back of PO McCloud's patrol car, PO McCloud said to him, "Shut the fuck up before I beat you up." PO McCloud denied that § 87(2)(b) was in his patrol car and denied making this statement. § 87(2)(g)

It is therefore recommended that allegation E be closed as “*Substantiated.*”

Allegation F: PO William Diab acted rudely toward § 87(2)(b)

§ 87(2)(b) alleged that PO Diab forcefully pulled him out of the patrol car and threw his personal items onto the ground. PO Diab denied having § 87(2)(b) in his patrol car or throwing his personal items onto the ground. § 87(2)(g)

Therefore, it is recommended that allegations F and G be closed as “Substantiated.”

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away on § 87(2)(b) and § 87(2)(b) and had not recognized § 87(2)(b) from any previous interactions. The summons that § 87(2)(b) received did not have a legible address and it did not indicate a cross-street by § 87(2)(b). Six police officers who were interviewed from the 71st Precinct, however, placed PO McCloud and PO Diab on the porch of § 87(2)(b). Two of the officers, PO Chaparro and PO Lopez, knew PO McCloud personally. PO Chaparro and PO McCloud were in the same company within the police academy. PO McCloud denied having any physical interaction with § 87(2)(b). A 911 call was placed by a woman who lived across the street from § 87(2)(b) who observed someone holding § 87(2)(b) down on his porch. This call was the reason that officers from the 71st Precinct responded to the location. PO Pietanza, PO Chaparro, PO Lopez and PO Casale stated that § 87(2)(b) was on the ground of his porch when they arrived at the residence. PO Pietanza stated that he assisted PO McCloud and his partner in placing handcuffs on § 87(2)(b). Lastly, PO McCloud denied placing § 87(2)(b) in the rear of his patrol car. Ins Vega, PO Pietanza, PO Lopez, PO Chaparro, PO Casale, and PO Noel stated that they saw § 87(2)(b) in handcuffs. All of the officers except PO Noel stated that § 87(2)(b) was also placed in the rear of PO McCloud's patrol car.

§ 87(2)(g)

It is therefore recommended that PO McCloud be cited for *other misconduct*.

Other Misconduct Noted: Police Officer William Diab intentionally made a false official statement when he said that he never interacted with § 87(2)(b) at § 87(2)(b) in Brooklyn, never used physical force, and never searched and placed § 87(2)(b) into the back of his patrol car.

PO William Diab was identified via the investigation as PO McCloud's partner on December 31, 2007. PO Diab was present and helped to forcibly stop § 87(2)(b) outside of his home at § 87(2)(b) in Brooklyn. PO Diab denied ever being on § 87(2)(b) physically interacting with § 87(2)(b) placing him into the patrol car or taking him away from the scene. PO Diab recalled specific details of his alleged interaction with § 87(2)(b) that he ran from the officers, had a bulge on the waistband and moved it around. He also recalled the crowd gathered and § 87(2)(b) was uncooperative. § 87(2)(b) was issued a summons and the interaction according to PO Diab was 40 minutes. § 87(2)(g)

As stated above, several officers from the 71st Precinct arrived to assist PO Diab and PO McCloud. Two of which, personally knew PO McCloud from the police academy and was able to identify him by name. A Sprint from a 911 call was generated and specifies that the interaction with § 87(2)(b) occurred on his front porch and not somewhere else. Five out of eight witness officers saw § 87(2)(b) on the ground. Six officers, who include Inspector Vega from the 71st Precinct and § 87(2)(b)'s neighbors, witnessed § 87(2)(b) being placed into PO Diab and PO McCloud's patrol car.

§ 87(2)(g) It is therefore recommended that PO Diab be cited for *other misconduct*.

Investigator:
Nina S. Mickens

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: